

Justification for Other than Full and Open Competition
United States Department of Agriculture
Federal Acquisition Regulation (FAR) Part 6.3

1. Identification of the agency and the contracting activity.

Requesting Agency: USDA, APHIS, Wildlife Services,
Pocatello Supply Depot

Contracting Activity: USDA APHIS WS PSD
238 E. Dillon Street
Pocatello, ID 83201

2. The nature and/or description of the action being approved.

The USDA/APHIS/WS Pocatello Supply Depot would like to enter into 3 year IDIQ Contract on a basis other than full and open competition with H Interdonati Incorporated for Strychnine Alkaloid Powder.

3. A description of the supplies or services required to meet the agency's needs (including the estimated value).

The PSD is requesting the delivery of up to 3,000 oz of Strychnine Alkaloid Powder (>= 97%) CAS #57-24-9 per year.

4. The statutory authority permitting other than full and open competition.

41 U.S.C. 3304(a)(1), as implemented by FAR 6.302-1, titled "Only one responsible source and no other supplies or services will satisfy agency requirements."

5. A statement demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

The company we have identified as a sole source, H Interdonati Inc, is a small, woman owned business. We have purchased strychnine alkaloid from this company for over 12 years because they are the only U.S. Environmental Protection Agency (EPA) registered source of strychnine that is also an approved supplier of strychnine on our EPA approved Confidential Statement of Formulation (CSF). Other suppliers of strychnine alkaloid on our CSF are either no longer in business or no longer sell strychnine alkaloid. A search of the EPA Pesticide Product and Label System only resulted in one source of strychnine alkaloid for pesticide manufacturing purposes. That company is H Interdonati Inc. Any other supplier of strychnine alkaloid would first have to register their product as a technical material with the EPA and we would then have to add that company to our CSF. This process can take multiple years and would result in an unacceptable delay for the manufacturing of our products.

6. A description of efforts made to ensure offers are solicited from as many potential sources as is practicable.

The two other companies identified on our EPA approved Confidential Statement of Formulation were contacted and one company had been dissolved and the second company no longer sells this product. I have also searched the EPA Pesticide Product and Label System and found that H Interdonati Inc. is the only EPA registered source of strychnine alkaloid for pesticide manufacturing purposes.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Unregistered strychnine (98%) sold by the MilliporeSigma is \$79.90/ounce and unregistered strychnine (98%) sold by Spectrum Chemical is \$60.00/ounce. Based on these prices the \$17.00/ounce charged by H. Interdonati is fair and reasonable.

8. A description of the market research conducted and the results or a statement of the reason Market Research was not conducted.

Because we need to use the suppliers on our EPA approved Confidential Statement of Formula, market research was limited. We contacted the suppliers of strychnine on our CSF but have not received a response.

9. Any other facts supporting the use of other than full and open competition.

Because no other company has registered strychnine alkaloid as a technical material with the EPA for manufacturing pesticides we have no choice but to purchase our strychnine from H. Interdonati Inc. Even if another company registered strychnine for pesticide manufacturing use, we would have to change our confidential statement of formula to add that company. This process can take multiple years resulting in an unacceptable delay in producing the pesticides we sell to our stakeholders.

10. A listing of the sources, if any, that expressed a written interest in the acquisition.

None

11. A statement of actions, if any, the agency may take to remove or overcome any barriers to competition if subsequent acquisitions are anticipated.

In the future, a Sources Sought solicitation will be posted to look for other registered sources of strychnine alkaloid. However, there is no indication that this product will be available from any other distributor. Should additional companies become available the PSD will solicit those entities to determine the best source to purchase strychnine alkaloid powder.

Certifications & Approvals

Supporting data that form the basis for and included in this justification are certified accurate and complete.

Insert Name of Program or Technical Personnel

Insert Title of Program/Technical Personnel

The information contained in this Justification for Other Than Full and Open Competition is certified accurate and complete to the best of my knowledge and belief.

Insert Name of Contracting Officer

Contracting Officer

Additional Reviews & Approvals

Signatures are required at each threshold up to the total estimated dollar value of the acquisition

Advocate for competition for the procuring activity (if over \$700,000, but not exceeding \$13.5 million). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as advocate for competition for the procuring activity, I hereby approve this justification.

N/A

Insert Name of the Mission Area Competition Advocate

Mission Area Advocate for Competition

Head of the Procuring Activity (if over \$13.5 million, but not exceeding \$68 million). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as the Head of the Procuring Activity, I hereby approve this justification.

N/A

Insert Name of the Head of the Procuring Activity

Head of the Procuring Activity

United States Department of Agriculture

Senior Procurement Executive of the Agency (if over \$68 million). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Therefore, as the Senior Procurement Executive, I hereby approve this justification.

N/A

Insert Name of Senior Procurement Executive
Senior Procurement Executive
United States Department of Agriculture

Notes and Guidance. Delete these notes prior to finalizing document for signature

Acquisitions for commercial items/services with a value exceeding \$7 million, and acquisitions for non-commercial items/services with a value exceeding the Simplified Acquisition Threshold (SAT) are subject to the competition requirements of FAR Part 6.

Program personnel are advised to work with contracting personnel early on in order to promote and provide for full and open competition to the maximum extent practicable. In circumstances permitting other than full and open competition, program personnel shall provide necessary information to contracting personnel to support and document the circumstances limiting competition through the use of this form. Contracting without providing for full and open competition or full and open competition after exclusion of sources is a violation of statute, unless permitted by one of the exceptions permitted in FAR 6.302.

Advance planning. Contracting without providing for full and open competition shall not be justified on the basis of (1) a lack of advance planning by the requiring activity or (2) concerns related to the amount of funds available to the agency or activity for the acquisition of supplies or services.

Brand Name. Items peculiar to one manufacturer can be a particular brand name, product, or feature of a product, peculiar to one manufacturer. A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer. Brand name specifications shall not be used unless the particular brand name, product or feature is essential to the Government's requirements and market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet the Agency's needs. See below for posting requirements.

Posting. Contracting Officers shall make justifications (excluding brand name) publicly available within 14 days after contract award in accordance with the procedures at FAR 6.305(d),(e), and (f). In the case of unusual and compelling urgency, justifications shall be made publicly available within 30 days after contract award in accordance with the procedures at FAR 6.305(b), (d), (e), and (f). Brand name justifications shall be posted with the solicitation in accordance with FAR 6.305(c) and 5.102(a)(6).

Screening. Before posting this Justification, in accordance with FAR 6.305(e) and 24.202, the Contracting Officer is responsible to redact any information that is exempt from disclosure under Freedom of Information Act or information proprietary to the contractor.

Sole Source 8(a) over \$22 million. As a minimum, each justification for a sole source 8(a) contract over \$22 million shall include the information required by FAR 6.303(d)(1) through (5).

Signatures. After review and completion by the Program Office and Contracting Officer, the Word document shall be converted to an Adobe PDF file and routed for digital electronic. Signature blocks shall include dates.